

Nepal Health Service Act, 1997

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Date of Royal Seal and Publication

2043.11.15

Amending Acts

1. Nepal Health Service (First Amendment) Act, 2055This Act, Sections 2, 4, 6, 9, 10, 13, 15, 16 and 17 commenced from Jestha 14, 2054 and other Sections commenced immediately. 2055.10.27
2. Act Made to Amend Certain Nepal Acts Relating to Health, 2058 2058.5.6

Date of Certification and Publication

2058.7.22

3. Nepal Health Service (Second Amendment) Act, 2058This Act, Sections 2 and 3 commenced immediately and Section 4 commenced from Magh 27, 2055. 2058.7.22
4. Nepal Health Service (Third Amendment) Act, 2063 2063.8.22
5. Republic Strengthening and Some Nepal Laws Amendment Act, 2066This Act came into force from Jestha 15, 2065. 2066.10.7
6. Nepal Health Service (Fourth Amendment) Act, 2070Note: On date 2069.12.29, Nepal Health Service (Fourth Amendment) Ordinance, 2069 was promulgated and remained in force until the commencement of this Act. 2070.12.12
7. Pension Fund Act, 2075 2075.12.04
8. Administrative Court Act, 2076 2076.06.24

Act No. 32 of the year 2043

An Act Made to Make Provisions for the Formation, Operation and Terms of Service of the Health Service

Preamble: Whereas, since health service is an essential service for the general public, it is desirable to make provisions relating to the formation, operation, and terms of service of the health service to make this service more efficient, strong, service-oriented and publicly accountable,

Therefore, Parliament has enacted this Act in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shahdev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Nepal Health Service Act, 2043".
(2) This Act shall commence on the ninety-first day from the date of the Royal Seal by His Majesty's Government. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Health Service" means the Nepal Health Service constituted under Section 3. (b) "Employee" means a person holding a position in the Health Service. (c) "Integrated Medical Officer" means a person who has obtained a postgraduate degree in Ayurveda and Allopathy from a recognized educational institution, has registered their name in the Ayurveda Medical Council, and is holding a position in the Health Service, and said term also denotes a person whose name will be registered after the formation of the Ayurveda Medical Council if it has not been formed at the time of commencement of this Act. (d) "Competent Authority" means the officer authorized to make appointments under Section 11. (e) "Family" means the spouse, son, unmarried daughter, adopted son, unmarried adopted daughter, father, mother or stepmother living with the employee and whom the employee must support, and said term also denotes, Amended by the Third Amendment.in the case of a male employee and an unmarried female employee, his/her grandfather and grandmother, and Added by the Third Amendment.in the case of a married female employee, her mother-in-law and father-in-law. (f) "Departmental Head" means the prescribed officer. (g) "Office Chief" means the chief employee of the prescribed office. (h) "Permanent Position" means a position in the Health Service that is pensionable and for which no term is fixed. (i) "Special Position" means a position having work, duty and responsibility of a special nature and requiring a special kind of qualification. (j) "Ministry" means the Amended by the Fourth Amendment.Ministry of Health and Population of the Government of Nepal. Added by the Fourth Amendment.(ka1) "Trade Union" means the trade union of employees formed under Sub-section (1) of Section 92A. Added by the Fourth Amendment.(kha1) "Authoritative Trade Union" means the authoritative trade union of employees formed under Sub-section (3) of Section 92A. (l) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Chapter-2 Formation of the Health Service 3. Formation of the Health Service: A service named Nepal Health Service is constituted. 4. Added by the Fourth Amendment.Levels in the Service: (1) The Health Service shall have the following levels: Officer Level Assistant Level Twelfth Fifth Eleventh Fourth Tenth Third Ninth Eighth Seventh Sixth (2) Notwithstanding anything contained in Sub-section (1), if there is no employee at the third level, such level shall not remain.

Deleted by the Fourth Amendment.(3)

Deleted by the Fourth Amendment.(4)

5. Positions in the Service: (1) The different levels of the Health Service shall have technical positions including specialist positions. The position names of such positions shall be as prescribed. Added by the Fourth Amendment.(1A) Notwithstanding anything contained in Sub-section (1), prescribed employees of the assistant level who have obtained the prescribed qualification may be given a designation as prescribed. Added by the Fourth Amendment.(1B) Notwithstanding anything contained in Sub-sections (1) and (1A), Rural Health Workers under the Health Inspection Group and Maternal and Child Health Workers under the Community Nursing Group who were at the third level after Chaitra 29, 2069, shall be placed at the fourth level and given the designation of Auxiliary Health Worker (AHW) and Auxiliary Nurse Midwife (ANM) respectively.

(2) Amended by the Fourth Amendment.The Ministry shall prepare a job description for the position at each level of the Health Service, and such job description shall mention the work, duty and responsibility, as well as the authority, of the concerned position. Added by the Fourth Amendment.(3) Notwithstanding anything contained in Sub-section (2), the Ministry shall prepare and implement a job description for Rural Health Workers and Maternal and Child Health Workers so that the work currently performed by them shall be performed by the Auxiliary Health Worker (AHW) and Auxiliary Nurse Midwife (ANM) respectively. 6. Medical Systems under the Health Service: (1) The Health Service shall include the following medical systems:?

- (a) Allopathic medical system,
- (b) Ayurvedic medical system,
- (c) Homeopathic medical system.

(2) In addition to the medical systems mentioned in Sub-section (1), the Government of Nepal may, by publishing a notice in the Nepal Gazette, prescribe other medical systems.

7. Groups and Sub-groups: (1) The Health Service shall have various groups and sub-groups as prescribed.

(2) The minimum qualification required for positions at various levels in the groups and sub-groups of the Health Service shall be as prescribed. Added by the Fourth Amendment.

7A. Creation of Posts: (1) Positions in the Health Service shall be created as prescribed.

(2) While preparing the organizational structure for establishing a new government office, creating new posts, or reviewing or altering the existing organizational structure and posts, the Ministry shall conduct an organizational and management survey based on the program of the Ministry, workload, work nature, the reason and justification for adding posts, and available human resources, and shall submit it to the General Ministry after obtaining the consent of the Ministry of Finance.

Chapter-3

Filling of Positions in the Health Service

Amended by the Fourth Amendment.

8. Filling of Positions in the Health Service: (1) The prescribed positions at the following levels of the Health Service shall be filled as follows:?

Level By Open Competition By Promotion

By Evaluation of Work Efficiency By Internal Competitive Examination By Adjustment through Evaluation of Work Performance and Experience

- (a) Fourth 100% - - -
- (b) Fifth 65% - 20% 15%
- (c) Seventh 65% - 20% 15%
- (d) Eighth (Medical Practitioner) 100% - - -
- (e) Ninth (Medical Practitioner) 20% 40% 40% -
- (f) Ninth (Nursing) 20% 40% 40% -
- (g) Ninth (Other than Medical Practitioner and Nursing) 20% 50% 30% -
- (h) Eleventh 10% 50% 40% -
- (i) Twelfth - 100% - -

(2) The minimum educational qualification required for open competition shall be as prescribed.

(3) If any employee who is at the same level or who has obtained a designation by upgrading to the same level but has not yet been adjusted and posted pursuant to this Act, fulfills the qualification stipulated for such examination for a position at any level to be filled by open or internal competitive examination, such employee may also sit for such examination.

(4) Notwithstanding anything contained in Sub-section (1), if there is no employee at a level lower than the position to be filled, such position shall be filled by open competition.

(5) Notwithstanding anything contained in Sub-section (1), to make the Health Service inclusive, forty-five percent of the positions to be filled by open competition shall be set aside, and considering that percentage

as one hundred percent, positions shall be filled by conducting competition only among candidates as follows:?

- (a) Women ? Thirty-three percent
- (b) Indigenous nationalities/Janajatis ? Twenty-seven percent
- (c) Madhesi ? Twenty-two percent
- (d) Dalit ? Nine percent
- (e) Persons with disabilities ? Five percent
- (f) Backward region ? Four percent

Explanation:

(1) For the purpose of this Sub-section, "Backward region" means the districts of Achham, Kalikot, Jajarkot, Jumla, Dolpa, Bajhang, Bajura, Mugu and Humla.

(2) For the purpose of clauses (a), (b), (c) and (d) of this Sub-section, "Women, indigenous nationalities/Janajatis, Madhesi and Dalit" means women, indigenous nationalities/Janajatis, Madhesi and Dalit who are economically and socially backward.

(6) While determining the percentage pursuant to Sub-section (5), a fraction of less than one percent shall be moved to the next group immediately after the group from which the fraction came.

(7) If suitable candidates are not available in the advertisement for the year for which the advertisement is made for the positions set aside pursuant to Sub-section (5), such positions shall be included in the advertisement for the next year, and if suitable candidates are not available even after advertising accordingly, such positions shall be included in the positions to be filled by open competition in the following year.

(8) The provision of filling positions according to the percentage determined pursuant to Sub-section (5) shall be reviewed every ten years.

(9) In case of any dispute in determining the number of positions according to the percentage pursuant to Sub-section (5), the decision made by the Public Service Commission shall be final.

(10) For positions or levels other than those filled pursuant to Sub-section (1), upgrading shall be done under Section 9.

(11) Other provisions relating to filling of positions shall be as prescribed.

Amended by the Third Amendment.8A. Restriction on Filling of Positions: (1) No position in the Health Service shall be filled in any manner other than as provided in this Act.

(2) If any position in the Health Service becomes vacant in any manner, the concerned body shall inform the Public Service Commission of such vacancy within one month of the position becoming vacant. The office-bearer who fails to provide information within that period shall be subject to departmental action.

(3) Upon receiving the written information pursuant to Sub-section (2), a requisition may be made specifying the positions that have become vacant up to that period and the positions that will become vacant by retirement and promotion within the current fiscal year.

(4) Other provisions relating to the requisition for filling positions shall be as prescribed.

(5) In the case of employees working in the Ministry, departments, centers and offices located within the valley, salary shall not be paid without passing the salary report from the Civilian Records Office, and in the case of employees of district level offices, from the concerned Treasury and Accounts Controller Office.

(6) If any person appoints an employee contrary to Sub-section (1) or is found to have paid salary without passing the salary report pursuant to Sub-section (5), the amount equivalent to the salary, allowance and other facilities received by such employee shall be recovered from the office-bearer making the appointment and paying the salary as a government due. Added by the First Amendment.8B. Not to Appoint on Daily Wage or Contract Basis: (1) No person shall appoint or cause to appoint any individual on a daily wage or contract basis for work that an employee is required to perform. Amended by the Fourth Amendment.Provided that, a qualified medical practitioner or health worker may be engaged on contract service in the following circumstances for a position in the Health Service:?

(a) While a medical practitioner or health worker is on study or extraordinary leave, for the duration of such study or extraordinary leave,

(b) While a position in the Service becomes vacant for any reason and the requisition form has been filled and sent to the Public Service Commission, but the position has not yet been filled, for the duration until filling.

(2) If any person appoints or causes to appoint any individual contrary to Sub-section (1), the amount equivalent to the salary, allowance and other facilities received by the person so appointed shall be recovered from the office-bearer making or causing the appointment as a government due. Amended by the Fourth Amendment.9. Upgrading: (1) Upgrading in the Health Service shall be done at the following levels as follows:?

S.No.

Current Level	Level for Upgrading	Required Service Period in the Relevant Level	Marks Required in the Performance Evaluation of the Last Two Fiscal Years	Required Service Period in a Remote Area
1 Fourth	Five Years	At least Excellent	At least one year in a very remote or two years in a remote area	2 Fifth
(a) Those initially appointed or upgraded to the fifth level and have fulfilled the minimum educational qualification for that level				
(b) Those promoted to the fifth level by internal competitive examination or among those upgraded who do not have the minimum educational qualification for that level				
3 Sixth	Sixth Five Years	Eight Years	At least Excellent	At least one year in a very remote or two years in a remote area
At least one year in a very remote or two years in a remote area				
4. Seventh	(a) Those appointed to the sixth level by completing the process of the Public Service Commission	(b) Among those upgraded to the sixth level, those whose level was matched to the senior fifth level	(c) Among those upgraded to the sixth level, those initially appointed at the fifth level	Seventh
Automatically: Seventh				
5. Ninth	Tenth	Two Years	At least Excellent	- (2) If the employee mentioned in Sub-section (1) has not worked in the area mentioned in that Sub-section for the period mentioned therein, such employee shall be upgraded only after going to such area, reporting for duty, and working for the deficient period.

Provided that, if an employee cannot be assigned to such an area due to the lack of a position or post, it shall not be an obstacle to upgrade such employee to a higher level, subject to the other Sub-sections of this Section.

(3) An employee who has been upgraded shall be grouped into the relevant group based on qualification. If an employee so grouped ceases to be in the Health Service for any reason, the post held by him/her shall be automatically abolished.

(4) An employee upgraded to a higher level shall perform the work of the level from which he/she was upgraded until he/she is posted pursuant to Sub-section (3) of Section 17 or Section 9B of this Act.

(5) Other provisions relating to upgrading shall be as prescribed. Added by the Third Amendment.9A. Not to Upgrade: Notwithstanding anything contained in Section 9, an employee shall not be upgraded in the following circumstances for the following periods:?

(a) In case of suspension, for the period of suspension,

(b) In case of a freeze on salary increment or promotion, for the period of the freeze,

(c) In case of being on extraordinary leave, for the period of such leave,

(d) In case of suspension of name registration from a health-related council established pursuant to prevailing law, for the period of such suspension. Added by the Fourth Amendment.9B. Special Provisions Relating to Posting: (1) For employees who have been upgraded or had their level matched before the commencement of this Section but have not yet been posted to the upgraded or level-matched position pursuant to Sub-section (3) of Section 17 of this Act, the Ministry shall create a pool post and post such employees to that pool post.

(2) If an employee posted to a pool post pursuant to Sub-section (1) is promoted or upgraded to a higher level or position, or ceases to be in the service in any manner, such a post shall be automatically abolished.

(3) If an employee posted pursuant to this Section has not obtained the minimum educational qualification prescribed for that position or the training as determined by the Ministry, such employee shall be provided training as determined by the Ministry.

(4) The transfer of an employee posted pursuant to this Section shall only be made to another pool post of a similar nature. Added by the Fourth Amendment.9C.

May Introduce Special Voluntary Retirement Scheme: (1) The Government of Nepal shall introduce, once, a special voluntary retirement scheme program targeting employees who, after the commencement of this Act, have been upgraded under this Act but have not yet been posted to the upgraded position, and among those posted under Section 9B of this Act, those who are in a position to receive a pension. (2) An employee wishing to take retirement under the voluntary retirement scheme introduced pursuant to Sub-section (1) shall submit an application to the Ministry within six months of the implementation of such program, and the Government of Nepal may grant voluntary retirement to the employee submitting such application. (3) For an employee receiving voluntary retirement pursuant to Sub-section (2), a total service period for pension shall be determined by adding a maximum of seven years of service, not exceeding the age of sixty years. (4) An employee receiving voluntary retirement pursuant to this Section may be paid a lump sum amount equivalent to up to seven years of pension. (5) Other provisions relating to the special voluntary retirement scheme shall be as prescribed. 10. Appointment on Recommendation of Public Service Commission: Appointment to a position to be filled by open competition or internal competitive examination shall be made on the basis of the recommendation of the Public Service Commission. 11. Appointment to Position in Health Service: (1) The

Government of Nepal shall make appointments to positions at the officer level of the Health Service, and notice of such appointment shall be published in the Nepal Gazette. (2) The Departmental Head may make appointments to positions at the assistant level of the Health Service. (3) Notwithstanding anything contained in Sub-section (2), the Office Chief may make appointments to positions from the assistant first level up to the fifth level in his/her office and offices under his/her jurisdiction. 12.

Disqualification for Appointment: The following persons shall not be eligible for appointment to a position in the Health Service: (a) Those who have not completed the age of eighteen years for an assistant level position, (b) Those who have not completed the age of twenty-one years for an officer level position, (c) Those who have completed the age of forty-five years, Provided that, the age limit shall not apply in the case of permanent employees currently serving in the Health Service and temporary employees currently serving who have been appointed as per rules to a position in the Health Service and have completed a continuous service period of five years. (d) Those whose name is not registered with a health-related professional council established pursuant to prevailing law, or whose name registration is not renewable, Added by the Second Amendment. Provided that, it shall not be deemed that this clause creates an obstacle for appointment to a position at a level for which there is no provision for name registration with any health-related professional council established pursuant to prevailing law. (e) Those who have been dismissed from service in a manner that renders them disqualified for government service in the future, (f) Non-Nepali citizens, (g) Those convicted by a court on a criminal charge involving moral turpitude. Amended by the Second Amendment. 13.

Provisions Relating to Temporary Appointment: (1) The Public Service Commission shall publish a separate list according to the order of merit for the purpose of making temporary appointments from among the candidates not recommended for permanent appointment in an examination conducted by it. (2) If a temporary appointment needs to be made to any vacant position in the Service, the Competent Authority shall write to the Public Service Commission. (3) Upon receiving a written request pursuant to Sub-section (2), the Public Service Commission shall recommend names for temporary appointment for a maximum of six months, based on the requisition, from among the persons on the merit list. (4) If the list pursuant to Sub-section (1) has not been published, or if the number of persons recommended pursuant to Sub-section (3) is less than the number of vacant positions, a temporary appointment may be made for up to six months with the consent of the Public Service Commission. (5) Until a recommendation for permanent filling of the position is received from the Public Service Commission, the term of employees appointed under this Section may be extended with the consent of the Public Service Commission. (6) Information about a temporary appointment made pursuant to Sub-section (4) shall be given to the Ministry of General Administration within seven days. (7) Notwithstanding anything written above, a temporary appointment shall not be made to any position in the Service without requisitioning the Public Service Commission for permanent filling of such position. (8) If any person makes or causes a temporary appointment contrary to this Section, the amount equivalent to the salary, allowance and other facilities received by the employee so appointed shall be recovered from the office-bearer making or causing the appointment as a government due. 14. Incumbent to Continue: An employee shall continue in his/her position as incumbent in the following circumstances: (a) As long as he/she is performing duties in that position. (b) Until the period allowed for taking charge after transfer to another position. (c) While on approved leave. (d) While under suspension. (e) While assigned by the Government of Nepal for governmental or non-governmental work, or while working as an acting incumbent in some other position. 15.

Acting Appointment: (1) An employee from the relevant group or sub-group, one level below the vacant or incumbent-held position, may be given an acting appointment for up to a maximum of one year for a vacant

or incumbent-held position of a Departmental Head or Office Chief in the Health Service, based on prescribed criteria. (2) Notwithstanding anything contained in Sub-section (1), Deleted by the Third Amendment. until a recommendation for permanent filling is received from the Public Service Commission, the period of acting appointment in that position may be extended for a maximum of one year, in consultation with the Public Service Commission. 16. To Take Oath: Every employee must take the prescribed oath before taking charge of their duties upon first appointment. Amended by the Third Amendment.17. Provisions Relating to Posting: (1) The posting of an employee shall be based on his/her educational qualification, training and experience. (2) Notwithstanding anything contained in Sub-section (1), while posting an employee from the sixth level to the seventh level, an employee who has obtained the educational qualification prescribed for the seventh level among employees whose level and position have been matched, and who has worked in seniority and geographical area, shall be given priority and posted. Amended by the Fourth Amendment.(3) An employee who has obtained a designation pursuant to Sub-section (1A) of Section 5 and who has obtained a designation on the basis of upgrading or level matching under this Act shall be adjusted and posted pursuant to Sub-section (1) of Section 8. Added by the Fourth Amendment.(4) Notwithstanding anything written elsewhere in this Section, only an employee who has obtained the minimum educational qualification or training for the fourth level shall be posted to that level.

Added by the Fourth Amendment.(5) While adjusting an employee based on the evaluation of work performance and experience pursuant to clauses (b) and (c) of Sub-section (1) of Section 8 of this Act, it shall be done on the basis of the following order of eligibility: (a) On the basis of seniority among employees who have been upgraded or level-matched to the relevant level and have achieved the prescribed educational qualification, (b) In the absence of the educational qualification mentioned in clause (a), on the basis of seniority among employees who have obtained the educational qualification prescribed for the position or level one level below the level to which they have been upgraded or level-matched, (c) In the absence of the educational qualification mentioned in clauses (a) and (b), on the basis of seniority among employees who have obtained training as determined by the Ministry, (d) In the absence of the educational qualification or training as per clauses (a), (b) and (c), on the basis of seniority in the level currently working, Added by the Fourth Amendment.(6) Other provisions relating to posting shall be as prescribed. 18. Probation Period: A new appointment to a permanent position in the Health Service shall be made subject to a probation period of Amended by the Third Amendment. six months in the case of a female employee and one year in the case of a male employee. If the work of the employee is not satisfactory during the probation period, his/her appointment may be annulled. The appointment of an employee whose appointment is not annulled shall be deemed automatically confirmed after the expiry of the probation period. Provided that, an employee who has already served a probation period for a permanent position in the Health Service shall not be placed on probation again. Amended by the Third Amendment.19. Appointment of Secretary: (1) Notwithstanding anything contained in prevailing law, an employee working at the Amended by the Fourth Amendment.twelfth level of the Health Service and having worked at the eleventh level for at least five years may be appointed to the position of Secretary of the Ministry of Health and Population, based on seniority and performance evaluation. Added by the Fourth Amendment.(1A) To be appointed to the position of Secretary pursuant to Sub-section (1), one must have completed the high-level management training prescribed by the Government of Nepal.

Added by the Fourth Amendment.(1B) The appointment of the Secretary shall be made by the Government of Nepal on the recommendation of the following Promotion Committee: (a) Chairperson of the Public Service Commission or a member of that Commission designated by him/her ? Chairperson (b) A member of that Commission designated by the Chairperson of the Public Service Commission ? Member (c) Chief Secretary

? Member (d) An expert on the relevant subject nominated by the Public Service Commission ? Member (e) Secretary of the Ministry of General Administration ? Member-Secretary (2) The term of office of a Secretary appointed pursuant to Sub-section (1) shall be five years, subject to Section 45. (3) While calculating the term of office of the Secretary pursuant to Sub-section (2), the service period served by him/her at the twelfth level shall also be counted. Chapter-4 Transfer, Deputation and Promotion Amended by the Third Amendment.20. Authority to Transfer and Assign on Deputation: (1) The Competent Authority shall have the authority to transfer and assign on deputation employees at the assistant level. (2) The following officers shall have the authority to transfer and assign on deputation employees at the officer level: (a) In the case of employees at the sixth and seventh levels, the concerned Departmental Director General or, in a department without a Director General position, the Director, (b) In the case of employees at the eighth, ninth and tenth levels, the Secretary of the Ministry. Amended by the Third Amendment.21. Basis for Transfer or Deputation: Amended by the Fourth Amendment.(1) An employee shall be transferred to very remote, remote and accessible areas in a manner that provides experience of different geographical regions of the country. (2) The division and sub-division of geographically very remote, remote and accessible areas shall be as prescribed. (3) An employee shall generally not be transferred before completing at least one year in a very remote area or at least two years in a remote area. Explanation: For the purpose of this Sub-section, "one year" means a period of at least 233 days of reporting for duty. (4) No employee shall be assigned on deputation to any office for a period exceeding thirty days in one year.

If an employee is assigned on deputation for a period longer than that period, the amount of salary and allowance received by such employee during the period of such deputation shall be deducted from the salary and allowance of the office-bearer assigning the deputation and recovered. (5) Notwithstanding anything contained in Sub-section (4), an employee may be assigned on deputation for a period exceeding thirty days in the following circumstances: (a) For natural disaster or treatment of infectious disease, or to participate in any training, seminar, workshop or national program upon nomination by the Government of Nepal, (b) To give an acting appointment to any position, (c) To perform the work of a vacant position of Office Chief or Unit Office Chief if it cannot be filled immediately. (6) If an employee transferred to a very remote or remote area pursuant to Sub-section (3) is assigned on deputation for training, seminar, workshop or national program pursuant to Sub-section (5), such employee shall not be deemed to have worked in a very remote or remote area during the period of such deputation. Amended by the Third Amendment.21A. Special Provisions Relating to Position or Post: (1) If a position or post becomes deficient while transferring an employee under Section 21, as many positions or posts as are deficient shall be automatically created without exceeding the total posts, and after such employee is transferred elsewhere, that position or post shall be automatically abolished. (2) For employees who have had their level matched or upgraded to a higher level under this Act, such positions shall be automatically created as long as they hold that level, and if a position at such level becomes vacant in any manner, the position at the original level shall be deemed vacant. Added by the Fourth Amendment.(3) As many employees as have been upgraded from the third level to the fourth level currently existing in the Health Service, that many posts shall be automatically created at the fourth level. Added by the Fourth Amendment.(4) The designation of employees in the posts created pursuant to Sub-section (3) shall be as prescribed. Added by the Fourth Amendment.21B.

May Assign Employees for Special Work: (1) Notwithstanding anything contained elsewhere in this Chapter, if the Ministry, by issuing a notice, is to conduct epidemic and infectious disease control or health-related special programs, it may assign any employee of the Health Service, including specialist medical practitioners, on deputation to the concerned district or area for up to one year to complete that work. (2) If an employee assigned on deputation for a period exceeding three months pursuant to Sub-section (1) reports for

duty at the office to which he/she is deputed, he/she shall receive the prescribed marks for that geographical area for promotion purposes. Amended by the Third Amendment. 22. May Transfer Before Completion of Period: Notwithstanding anything contained in Section 21, an employee may be transferred before the completion of the period in the following circumstances: (a) If a Medical Board constituted by the Government of Nepal recommends that an employee cannot stay and work at a certain place due to physical or mental illness, (b) If departmental action needs to be initiated against an employee, (c) If a post is abolished and the employee working in that post becomes surplus, Added by the Fourth Amendment. (c1) If an employee needs to be given a special responsibility, (d) In the case of an employee holding a position of Rural Health Worker, Ayurvedic Health Worker and Maternal and Child Health Worker, on the basis of mutual consent or, if such a position is vacant in an office, on the basis of the employee's request. 23. Other Provisions Relating to Transfer: Other provisions relating to transfer shall be as prescribed. 24. Promotion: Promotion to an officer level position in the Health Service shall be made on the recommendation of the Promotion Committee constituted under Section 25. 25.

Promotion Committee: (1) There shall be a Promotion Committee as follows to recommend promotion to officer level positions in the Health Service: (a) Chairperson of the Public Service Commission or a member of the Public Service Commission designated by him/her ? Chairperson (b) A member of the Public Service Commission designated by the Chairperson of the Public Service Commission ? Member (c) Chief Secretary ? Member (d) An expert on the relevant subject nominated by the Public Service Commission ? Member (e) Secretary of the Ministry of Health ? Member-Secretary (2) Notwithstanding anything written elsewhere in this Act, for promotion to a position at the twelfth level, the Promotion Committee shall recommend, based on work performance capability, at least fifty percent additional candidates of the vacant position, as far as possible, and the Government of Nepal (b) To training: employees of the ninth level and below, amended by the first amendment. and employees of the civil service of equivalent level; (c) To study tours: generally, the office chief, employees of the tenth level and above, amended by the first amendment. and employees of the civil service of equivalent level, in accordance with a pre-determined program. 34. Disqualification for Nomination: (1) The following employees shall not be eligible for nomination for study or training: (a) Those who are not potential candidates for promotion pursuant to Section 27, amended by the third amendment. or whose level increment has been withheld under this Act; amended by the first amendment. (b) An employee of the officer level who has been initially appointed and posted has not worked for at least one year in a very remote area or two years in a remote area, and who, before the commencement of the Nepal Health Service Act, 2053, while holding a permanent post in the gazetted class of the Nepal Health Service under the Civil Service Act, 2049, has not gone to work for at least one year in a very remote area or two years in a remote area. added by the first amendment. (c) If the employee referred to in clause (b) has not worked in the area mentioned in that clause for the period specified in that clause, until such period is completed by going to such area, reporting for duty, and working.

Provided that, when nominating for training of a purely technical and expert nature lasting less than ninety days, the disqualification under this section shall not apply.

(2) In the case of going for study without prior approval of the Ministry, no scholarship shall be provided by the Government of Nepal. 35. Period of Service Required after Completion of Study, Training, or Study Tour: An employee nominated by the Government of Nepal for study, training, or study tour shall, after completing such study, training, or study tour, compulsorily serve for the period as follows: ?

Duration of Study, Training, or Study Tour Minimum Period of Service Required

- (a) Up to three months One year
- (b) From three months to six months One and a half years
- (c) From six months to nine months Two years
- (d) From nine months to one year Three years
- (e) From one year to two years Four years
- (f) From two years to three years Five years
- (g) From three years to four years Seven years
- (h) From four years to five years Eight years
- (i) From five years to six years Nine years

36. Must Execute a Bond: (1) Before going for study, training, or study tour, any employee must execute a bond to return after completing such study, training, or study tour and serve for the period as per Section 35.

(2) The format of the bond to be executed under Sub-regulation (1) shall be as prescribed.

(3) If any employee fails to return for service after completing or not completing the study, training, or study tour, or fails to complete the required service period under Section 35, the salary, allowance, amended by the third amendment. tuition fees, and scholarship amount received by such employee during the period of study, training, or study tour shall be recovered from such employee, and departmental action shall be taken against him/her. Chapter-6

Salary, Allowance, Festival Expenses, and other Facilities

37. Salary and Allowance: (1) An employee shall receive salary and allowance, if entitled to allowance, from the date of assuming office in his/her post.

(2) The salary and allowance that an employee receives for working in the health service shall be as prescribed by the Government of Nepal from time to time.

(3) Except for the circumstances mentioned in Section 39 or 73, each employee, after completing one year of service, shall receive a salary increment of the amount amended by the Act to Amend Some Nepal Health Related Acts. as prescribed. Provided that, while prescribing the salary increment in this manner, the salary increment number shall be adjusted so that the amount currently received by the concerned employee is not reduced.

If a withheld salary increment is released, the concerned officer shall indicate in writing the date from which such salary increment is receivable. 38. Entitlement to Accrued Salary and Allowance, if any: (1) An employee shall receive salary and allowance, if entitled to allowance, after payment is made each month. (2) If an employee has accrued salary and allowance, if any, he/she shall receive it even if he/she is not in service for any reason. (3) Except as otherwise provided in this Act or the rules made under this Act, no employee's salary shall be deducted. (4) The salary payable to an employee shall not be withheld during the time the employee is working or on leave. 39. Crossing Efficiency Bar: An employee shall not be deemed to have crossed the efficiency bar unless the Secretary of the Ministry in the case of an officer-level employee, and the Authorized Officer in the case of an assistant-level employee, has certified in writing that the employee is eligible for crossing the efficiency bar. 40. Salary Payable if Suspended: (1) If an employee is suspended in connection with government work or as a result of proceedings instituted on behalf of the Government of Nepal, he/she shall receive only half of his/her salary during the period of such suspension. Provided that, if the charge is not proven and he/she is acquitted, he/she shall receive the full salary (including salary increment if any) amended by the third amendment. and festival expenses, after deducting

the half salary received during the suspension period, if any. If found guilty, he/she shall not receive the remaining salary and allowance from the date of suspension. (2) If any employee remains suspended for any reason other than those mentioned in Sub-section (1), he/she shall not receive salary for the period of such suspension. 41. Deposit of Amount in Employees' Provident Fund: Ten percent of the monthly salary of employees shall be deducted, and the Government of Nepal shall add an equal amount (one hundred percent) and deposit it in the Employees' Provident Fund. amended by the third amendment. 42. Festival Expenses and Other Facilities: (1) An employee of the health service shall receive, as festival expenses, an amount equivalent to one month's salary currently drawn by the employee, every year, for festivals celebrated according to his/her religion, culture, and tradition.

Such amount may be received by the employee once in a fiscal year on the occasion of the main festival celebrated according to his/her religion, culture, and tradition. (2) A retired employee entitled to pension shall be given an amount equivalent to one month's pension received by him/her as festival expenses. (3) Provisions regarding medical expenses, disability pension, facilities for disability, extraordinary family pension and gratuity, educational allowance, child pension, child care allowance, or other facilities receivable by an employee of the health service shall be as prescribed. amended by the third amendment. 43. Provision Regarding Insurance Facility: (1) If an employee dies while in service, a lump sum of one hundred and fifty thousand rupees shall be provided to his/her immediate heir as insurance. (2) The Government of Nepal shall establish an endowment life insurance fund. Two hundred rupees shall be deducted from the monthly salary of each employee and deposited in that fund, and the Government of Nepal shall add an equal amount and provide a twenty-year endowment life insurance policy for a sum assured of one hundred thousand rupees. When an employee retires from service, the sum assured and bonus shall be paid to him/her from the amount deposited in that insurance fund. (3) If an employee is compulsorily retired from service before completing the twenty-year period from the start of deduction under Sub-section (2), he/she shall be provided with the following amount: (a) If deductions have been made for less than one year, ten thousand rupees, (b) If deductions have been made for one to five years, twenty-five thousand rupees, (c) If deductions have been made for five to ten years, fifty thousand rupees, (d) If deductions have been made for ten to fifteen years, seventy-five thousand rupees, (e) If deductions have been made for up to twenty years, one hundred thousand rupees.

Provided that, if the amount deposited by him/her and the interest and dividend thereon exceed the amount mentioned above, an equal amount shall be provided from that fund.

(4) If an employee retires from service for any reason other than death or compulsory retirement before completing twenty years from the start of depositing the amount under Sub-section (1), such employee shall be provided with an amount equal to the surrender value.

(5) Notwithstanding anything written in Sub-sections (2) and (3), an employee retiring from the health service may continue the endowment life insurance with the maturity period of twenty years or less. Provided that the Government of Nepal shall not bear any cost for this.

(6) Other provisions relating to the endowment life insurance fund shall be as prescribed. 44. Special Provision Regarding Disabled Employee: If it is certified by a Medical Board constituted by the Government of Nepal that an employee is unable to serve regularly due to physical or mental illness, the Government of Nepal may retire such employee by adding a maximum of seven years of service to his/her service period.

Chapter-7

Retirement, Gratuity, and Pension

45. Compulsory Retirement: (1) An employee who has completed the age of sixty years or has completed the tenure as per Section 19 shall automatically retire from service.

(2) Notwithstanding anything written in Sub-section (1), if expert service is essential for the Government of Nepal, a period of up to a maximum of three years may be extended for an employee who is retiring upon completing sixty years.

(3) Employees who, before the commencement of this Act, had completed thirty years of service under the Civil Service Act, 2049, and had their term extended and are currently serving under this Act, may also remain in the health service until they complete the age of sixty years.

(4) For the purposes of this section, the age of an employee shall be calculated as follows:?

(a) The age derived from the date or year of birth mentioned in the certificate of the educational institution submitted by him/her at the time of entry into service;

(b) If no record as per clause (a) exists, the age derived from the date or year of birth mentioned in the personal service record (C.R.) at the time of entry into service. 46. Voluntary Retirement: amended by the Act to Amend Some Nepal Health Related Acts, 2058. An employee who has the condition for receiving pension and has completed the age limit of fifty years may take voluntary retirement within the period specified in the notice published by the Government of Nepal in the Nepal Gazette, subject to the conditions mentioned in that notice.

For an employee taking voluntary retirement in this manner, a maximum of seven years of service shall be added to the total service period for pension, provided that the age of sixty years is not exceeded. 47.

Gratuity: (1) An employee who has served in the health service for five years or more but has not completed the period for receiving pension shall, upon retirement, or upon approval of resignation and separation from the post, or upon removal from the post without being disqualified for future health service, receive gratuity at the following rates:?

(a) For an employee who has served in the health service for five to ten years, half a month's salary for each year of service rendered. (b) For an employee who has served in the health service for more than ten years up to fifteen years, one month's salary for each year of service rendered. (c) For an employee who has served in the health service for more than fifteen years but less than twenty years, one and a half month's salary for each year of service rendered. (2) Notwithstanding anything written in Sub-section (1), if an employee is proven to have falsified citizenship, age, or qualification with the intention of remaining in or receiving the health service, gratuity shall not be given to such employee, and he/she shall be punished according to the prevailing law. 48.

Pension: (1) An employee who has served in the health service for twenty years or more shall receive a monthly pension calculated as follows:?

$$\text{Total Service Years} \times \text{Amount of Last Salary}$$

50 Provided that:?

(1) An employee dismissed from service in a manner that renders him/her disqualified for future health service shall not receive pension under this section. (2) If an employee is proven to have falsified citizenship, age, or qualification with the intention of remaining in or receiving the health service, pension shall not be given to such employee, and he/she shall be punished according to the prevailing law. (2) Notwithstanding anything written in Sub-section (1), the minimum pension amount shall not be less than half of the initial salary of an employee holding an equivalent post, amended by the third amendment. and the maximum shall not exceed the initial scale of an employee holding an equivalent post. (3) An employee who was serving in the Nepal Health Service under the Civil Service Act, 2049, and has now been converted to the health service under this Act, if he/she retires upon completing the tenure under Section 19, the period remaining for such employee to complete the age of sixty years shall be added, and his/her total service period shall be

established. added by the third amendment. (3a) If an employee who has completed fifteen years of service but not twenty years of service dies, a maximum of five years may be added to his/her service period, and his/her family shall be given the option to choose either pension or gratuity. (4) If a person who is already receiving pension for prior service in a government post is later appointed to a post in the health service, he/she may receive pension under this section by adding the prior service period to the later service period. added by the third amendment. (5) An employee who, before Jestha 14, 2054, served continuously in a development-side post and was appointed to a regular-side post, if he/she wishes to receive pension, the service period required for pension from his/her development-side service period shall be added, and pension shall be given to him/her. 49. Increase in Pension: When the salary of a serving employee is increased, two-thirds of the increase in the initial salary amount shall also be added to the pension amount of retired employees of equivalent posts. 50. Family Pension and Gratuity: (1) If an employee dies while in service or before completing seven years from the start of receiving pension, his/her family, or his/her minor brother or unmarried sister, shall receive gratuity or pension as written in Section 47 or 48.

Provided that, in the case of pension, such pension shall not be receivable for more than seven years. The family of an employee who dies before completing seven years from the start of receiving pension shall not receive pension after seven years. (2) Notwithstanding anything written in Sub-section (1), if the person receiving pension is a minor, he/she shall receive such pension until attaining majority. (3) If the widower husband or widow wife of an employee dies while the employee is in service or before completing seven years from the start of receiving pension, and is eligible for family pension under Sub-section (1), such pension shall be half of the pension amount receivable by the employee, from the date of payment of the family pension period if applicable, or from the date of death of the employee if no such pension is receivable or if the spouse died after seven years from the start of receiving pension, for life. (4) When the salary of a serving employee is increased, two-thirds of the increase in the initial salary amount shall also be added to the family pension amount currently received by persons receiving family pension under Sub-sections (1), (2), and (3). (5) If an employee dies before receiving any amount receivable under this Act, such amount may be received by the person among the members of his/her family who is determined to be entitled to his/her pension or gratuity under this Act. (6) When giving pension or gratuity, if the deceased employee has expressed a wish among the members of his/her family or his/her minor brother or unmarried sister, such amount shall be given to that person; and if for any reason that person cannot receive it, or if no one was wished, it shall be given to the nearest heir among the members of the deceased employee's family. added by the Pension Fund Act, 2075. 50A. Special Provision Regarding Contributory Pension Fund: (1) For an employee appointed in the health service after the commencement of this Act, the provisions according to the prevailing law relating to the contributory pension system shall apply. (2) For an employee to whom the contributory pension system under Sub-section (1) applies, the provisions of Sections 46, 47, 48, 49, and 50 shall not apply. 51.

Reference to Salary: (1) Wherever salary is mentioned in this Chapter and Chapter-6, it shall refer to the current salary amount (including salary increment) of the concerned employee. (2) For the purposes of Sections 47 and 48, "Last Salary" shall mean the salary of the concerned employee at the time of retirement; and if an employee was on extraordinary leave or suspension at such time of retirement, the full salary shall be calculated for that period as well. Chapter-8 Conduct 52. Punctuality and Regularity: An employee must report to the office regularly at the time determined by the Government of Nepal, and shall, as far as possible, not be absent from work without prior approval of leave. 53. Discipline and Obedience: (1) An employee must remain disciplined and perform his/her duties with honesty and promptness. (2) An employee shall promptly comply with orders given by a superior officer regarding government work matters. (3) An employee shall

show proper respect to all employees senior to him/her and behave properly towards employees junior to him/her. 54. Not to Exert Political or Undesirable Influence: No employee shall exert or attempt to exert any political or undesirable influence over another employee with the intention of achieving self-interest in matters related to his/her service. 55. Not to Take Part in Politics: An employee shall not take part in politics by conducting propaganda, making statements, or giving speeches in favor of or against any political organization or party. 56. Not to Criticize the Government: (1) No employee shall publish any article, give any news to the press, broadcast speeches via radio or television, etc., give any public speech, or publish any statement under his/her real or fictitious name or anonymously, in a manner contrary to the policy of the Government of Nepal or likely to disrupt the mutual relationship between the Government of Nepal and the people, or relations with any foreign state. (2) Notwithstanding anything written in Sub-section (1), there shall be no restriction on publishing or broadcasting articles that are not contrary to the prevailing law and the policy of the Government of Nepal. 57. Prohibition on Publishing News Related to Government Work: No employee shall, without authorization by the Government of Nepal, directly or indirectly give or disclose any secret or legally prohibited matter that came to his/her knowledge while performing government duties, or any document or news written or collected by him/her, to other unauthorized employees or non-governmental persons or the press. This prohibition shall also apply to persons who are not in service for any reason. 58.

Prohibition on Accepting Donations, Gifts, Contributions, etc., and Taking Loans: (1) No employee shall, without prior approval of the Government of Nepal, accept any kind of donation, charity, gift, or present from anyone, or solicit contributions, or take loans from persons related to work, by himself/herself or through any member of his/her family, in a manner likely to affect service-related work in any way. (2) If an employee receives any gift from any foreign government or any representative of a foreign government, he/she shall inform the Government of Nepal of this and act as directed. 59. Not to Establish and Operate Companies, Engage in Trade or Business, or Private Practice: (1) An employee shall not, without prior approval of the Government of Nepal, do the following: (a) Take part in the establishment, registration, or operation of any bank or company, or open, operate, or work in a health clinic or private hospital or nursing home; (b) Engage in any trade or business that must be registered under the prevailing law; (c) Accept any type of employment elsewhere. (2) Notwithstanding anything written in Sub-section (1), an employee may engage in literary, scientific, or artistic work, or provide free health services, provided it is not contrary to the policy of the Government of Nepal and does not interfere with the work assigned to him/her. 60. Not to Participate in Elections: An employee shall not participate in any election for a political office, or solicit votes for anyone, or exert any kind of influence. Provided that there shall be no restriction on exercising the right to vote as per the prevailing law. 61. Prohibition on Demonstrations and Strikes: An employee shall not conduct demonstrations, participate in strikes, or incite others with the intention of doing so, in a manner that undermines the sovereignty and integrity of Nepal, omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. jeopardizes the peace, security, foreign relations, and public decorum of the country, or disrespects court decisions, creates enmity among people of different castes, ethnicities, religions, classes, regions, and sects, or spreads communal ill-feeling, or encourages any crime, or obstructs or opposes the performance of his/her duties. 62. Prohibition on Strikes, Siege, and Encircling: An employee shall not go on strike or pen-down, or exert pressure causing physical or mental harassment, or incite others with the intention of doing so, in a manner that obstructs or opposes the fulfillment of duties determined by law of any office or officer. 63.

Not to Act Negligently or Maliciously: An employee shall not, in the course of performing duties, act negligently or maliciously while providing health services to patients in a manner that may cause harm or loss to the patient's life or body. 64. Prohibition on Representation: An employee shall not represent any other

person or group except by submitting a petition personally or through an agent to the concerned body or officer regarding a personal grievance. Provided that this Act shall not be deemed to prevent representation made on behalf of a professional organization of employees recognized by the Government of Nepal, or any act required to be performed based on the employee's official responsibilities. 65. Membership of Institutions: (1) No employee shall become a member of any type of institution other than a professional organization registered under the prevailing law, without prior approval of the Government of Nepal. (2) Notwithstanding anything written in Sub-section (1), nothing written in this section shall be deemed to prevent an employee from becoming a member of his/her professional and other social institutions, provided it is not contrary to the prevailing law and the policy of the Government of Nepal. added by the fourth amendment. 65A. Not to Torture: (1) An employee shall not torture anyone. (2) An employee shall not commit or cause to commit acts related to sexual harassment and domestic violence. added by the fourth amendment. 65B. Behavior Towards Service Seekers: (1) An employee must behave courteously and respectfully towards service seekers related to his/her work. (2) An employee must provide clear information to the service seeker in a timely manner regarding the subject matter, procedure, and time required for the performance related to the service seeker's work. amended by the third amendment. 65A. Must Adhere to Conduct Appropriate to Service and Post: Every employee must also adhere to conduct appropriate to his/her service and post. amended by the third amendment. 65B. Other Conduct: (1) An employee must responsibly and respectfully fulfill the responsibilities arising according to his/her office and post, and perform work impartially, transparently, and quickly and efficiently. (2) An employee shall not use or utilize any government property for domestic work. (3) An employee shall not utilize any government employee, appointed to receive salary and allowance from government revenue, for his/her domestic work, except in the name of the office. (4) An employee shall not close or cause to close a health institution. (5) An employee shall not smoke or consume alcohol during office hours and within the office premises. 66.

Property Details: An employee must provide details of his/her property, and if the details so provided are found to be false, action shall be taken according to the prevailing law. 67. Must Adhere to Conduct Appropriate to Service and Post: Every employee must also adhere to conduct appropriate to his/her service and post. 68. May Issue Warning: If an employee fails to observe office hours, fails to obey the orders of a superior employee regarding government work, or is negligent or dilatory in work according to the responsibility assigned to him/her, the concerned supervisor may issue a warning with reasons to such employee, and a record of the same shall be kept in the personal details file of the concerned employee. Chapter-9 Security of Service 69. Security of Service of Employee: No employee, except the following, shall be removed or dismissed from service without being given a reasonable opportunity to present evidence of innocence: (a) Found guilty by a court of a criminal offense involving moral turpitude; (b) Serving in a temporary post; (c) Whose whereabouts are unknown or there are sufficient grounds that contact cannot be established; (d) Whose name registration has been cancelled by a health-related professional council established under the prevailing law. 70. Defense of Employee: (1) No case may be instituted against an employee in relation to any act done by him/her in the belief of performing the duties of his/her office, without following the procedure under Sub-section (2). (2) For instituting a case against an employee under Sub-section (1), permission of the Attorney General must be obtained in cases where the Government of Nepal is the plaintiff, and permission of the Authorized Officer in other cases; and in civil cases, the following conditions must be met: (a) A written notice stating the cause of action and the name and address of the plaintiff and his/her agent, if any, has been submitted to the Authorized Officer or the concerned employee, or sent by registered post, and a copy thereof has been filed with the Government of Nepal. (b) The case has been filed within eight months from the cause of action.

Provided that, this Sub-section shall not be deemed to prevent the institution of a case and claim for compensation under the prevailing law against an employee who, as a result of an act done negligently or maliciously, causes physical harm or loss to someone.

(3) Even after the cessation of employment, no case may be instituted against an employee in relation to an act done in the course of performing the duties of his/her office while in service, without approval under Sub-section (2).

(4) If approval is given by the Government of Nepal to institute a case under Sub-section (3), the Government of Nepal shall provide for his/her defense. 71. Security of Service Conditions: The service conditions regarding salary, gratuity, pension, and other facilities in force at the time of appointment of any employee shall not be changed to the employee's disadvantage without his/her consent. If any subsequent amendment adversely affects the aforesaid service conditions of an employee who was in service before such amendment, such amended provision shall not apply to him/her unless he/she gives written consent to be governed by such amended provision. Chapter-10

Punishment and Appeal

72. Punishment: For just and sufficient cause, an employee may be subjected to departmental punishment as follows:?

amended by the third amendment. (a) Ordinary Punishment:

- (1) Reprimand,
- (2) Withholding of promotion for up to two years,
- (3) Withholding of up to two salary increments,
- (4) Withholding of promotion for up to five years,
- (5) Withholding of up to five salary increments,

amended by the fourth amendment. (6) Reduction to the initial salary scale of the post.

added by the fourth amendment. (7) Withholding of level increment.

(b) Special Punishment:

- (1) Removal from service without being disqualified for future health service.
- (2) Dismissal from service, rendering the employee disqualified for future health service. 73.

Reprimand or Withholding of up to Two Salary Increments or Promotion for up to Two Years: In any of the following circumstances, an employee may be punished with reprimand or withholding of up to two salary increments or withholding of promotion for up to two years: (a) If he/she has committed indiscipline more than once; (b) If he/she has violated conduct-related matters mentioned in this Act and the rules made under this Act; (c) If he/she has not settled accounts as per the prevailing law; (d) If he/she has received written warnings twice in a year under Section 68; (e) If he/she has not settled advances as per the prevailing law; (f) If he/she has failed to follow the instructions given by a superior officer regarding repeated neglect of service seekers' grievances and complaints; (g) If the office bearer responsible for implementing job descriptions fails to do so. added by the third amendment. 73A. Withholding of Promotion for up to Five Years or Withholding of up to Five Salary Increments or Reduction to Initial Salary Scale of the Post: In any of the following circumstances, amended by the fourth amendment. an employee may be punished with withholding of promotion for two to five years or withholding of two to five salary increments or reduction to the initial salary scale of the post he/she holds: (a) If he/she has repeatedly committed indiscipline; (b) If he/she has failed to responsibly fulfill the duties and responsibilities prescribed by this Act or the prevailing law; (c) If he/she has

failed to follow instructions given regarding irregularities found in management audit. 74.

Removal or Dismissal from Service: (1) In any of the following circumstances, an employee may be removed from service without being disqualified for future government service: (a) If he/she has acted negligently or maliciously; (b) If the employee is unable to perform the work or responsibility of his/her post; (c) If he/she has repeatedly violated conduct-related matters; (d) If he/she repeatedly consumes intoxicating substances during office hours; (e) If he/she repeatedly commits indiscipline; (f) If he/she participates in politics; amended by the third amendment. (g) If he/she has received reprimands more than twice regarding failure to maintain discipline and obey orders under Section 53; (h) If he/she remains absent from his/her office continuously for sixty days without approval of leave; added by the third amendment. (h1) If he/she does not report for duty and work at the office where posted or deputed; (i) If he/she fails to serve for the prescribed period under Section 35. (2) In any of the following circumstances, an employee may be dismissed from service, rendering him/her disqualified for future health service: (a) If found guilty by a court of a criminal offense involving moral turpitude. (b) If involved in corruption. added by the third amendment. 74A. **Special Provision Relating to Departmental Action and Punishment:** Notwithstanding anything written elsewhere in this Act, if a request is made by the Commission for the Investigation of Abuse of Authority under the Commission for the Investigation of Abuse of Authority Act, 2048, or by the concerned body under the prevailing law, to take departmental action against an employee, departmental punishment must be given accordingly after completing the necessary procedure. amended by the third amendment. 75. **Authority to Impose Departmental Punishment:** (1) The authority to order punishment under clause (a) of Section 72 shall vest in the prescribed Officer. (2) The authority to order punishment under clause (b) of Section 72 shall vest in the following officers or bodies: (a) For employees working at the eleventh level and above ? Government of Nepal, Council of Ministers; (b) For employees working at the sixth, seventh, eighth, ninth, and tenth levels ? Secretary of the Ministry; (c) For employees working at the fourth and fifth levels ? Chief of the concerned Department/Office. 76.

Appeal Against Order of Special Punishment: (1) An employee may appeal against an order of special punishment given under Sub-clause (1) or (2) of clause (b) of Section 72 by the officer authorized to impose departmental punishment, to the Administrative Court established under the prevailing law, amended by the Administrative Court Act, 2076. as per the prevailing law. (2) In relation to an employee, after a final decision on the appeal under this section, if as a result his/her service is to be reinstated, his/her employment shall be terminated if he/she does not appear within three months from the date of notice of such decision. (3) The appellant may, if he/she wishes, appear personally or through an agent on the hearing date and conduct arguments through a legal practitioner. amended by the third amendment. 77. **May Delegate Authority to Impose Departmental Punishment:** The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate the power of any officer authorized to order punishment under Section 72, to be exercised by the officer specified in that notice for the specified period. 78. **Power to Suspend:** (1) If it is necessary to investigate any charge mentioned in Section 74 against an employee, the officer authorized to order punishment may suspend such employee until the investigation is completed. Provided that, generally, suspension shall not be made unless the following circumstances exist: (a) There is a possibility that allowing the employee to perform duties without suspension may lead to fabrication of false evidence or disappearance of evidence against him/her; or (b) There is a possibility that allowing the employee to perform duties without suspension may cause government loss or damage. (2) The officer authorized to order punishment may, along with serving notice of the charge of removal or dismissal from the health service, also suspend the employee. (3) When suspending an employee under Sub-section (1), the period shall generally not exceed two months. The proceedings against the employee must be concluded within that period. If due

to exceptional circumstances the proceedings cannot be concluded within that period and the suspension period needs to be extended, the suspension period may be extended by up to one month with prior approval of the Authorized Officer. (4) An employee arrested and detained on a criminal charge involving moral turpitude shall be deemed to be automatically suspended for the entire period of such detention. 79. Termination of Suspension: The suspension of an employee shall terminate if he/she is reinstated in his/her post, or if he/she is removed or dismissed from service. 80.

Must Give Opportunity to Present Defense: (1) Before issuing an order to impose departmental punishment on an employee, the officer authorized to impose departmental punishment must give a reasonable time limit to such employee to present his/her defense, stating the reasons for the proposed action. While giving such opportunity, the charges against him/her shall be clearly specified, and each charge shall be accompanied by the basis and reasons thereof. In such case, the concerned employee must submit his/her defense within the time limit. (2) The officer authorized to impose departmental punishment may, if deemed necessary, conduct an investigation himself/herself or through any other officer. Such investigating officer must follow the prescribed procedure. 81. Must Propose Punishment Before Issuing Special Punishment Order: Before issuing an order of special punishment, if the officer authorized to impose departmental punishment finds that the defense was not submitted within the time limit given to present defense under Section 80, or that the defense submitted is not satisfactory, he/she must give a reasonable time limit and seek an explanation as to why the proposed punishment should not be given to such employee. 82. Must Seek Advice of Public Service Commission: If, in the course of departmental action proceedings, the defense given by the concerned employee under Section 80 or the explanation given under Section 81 is not satisfactory and it appears necessary to punish such employee, the officer authorized to impose departmental punishment shall propose the punishment to be given to such employee and seek the advice of the Public Service Commission. 83. Procedure When Seeking Advice of Public Service Commission Regarding Departmental Action: (1) When sending a letter seeking the advice of the Public Service Commission under Section 82 regarding imposing departmental punishment on an employee, all documents related to the offense for which such departmental punishment is proposed, and any explanation submitted on behalf of the concerned employee, shall also be sent to the Public Service Commission. (2) If, in addition to the documents received under Sub-section (1), the Public Service Commission requires any other details concerning the employee, it may request the same from the concerned officer, and it shall be the duty of that officer to provide the details so requested by the Public Service Commission. 84.

Not to Remain in Service: (1) The following employees shall not remain in service in the following circumstances: (a) If serving in a temporary post, upon expiry of the term of such post; (b) (?) If there is a demand for transfer from the designated office bearers of national-level trade unions and authorized trade unions to a location suitable for their work area, the competent authority shall make arrangements to transfer them in a manner that is suitable accordingly. (?) Central office bearers and executive members of national-level trade unions may be granted leave of up to thirty days in a year to participate in domestic and foreign seminars, workshops, conferences, organizational work, and similar programs related to the union, provided that the work of the designated service is not hindered and no financial liability is incurred to the Government of Nepal. (?) Registration of a trade union shall not be on a level-wise (cadre) basis of employees. Provided that, trade unions officially registered under the Civil Service Act, 2049 prior to the commencement of this section shall be deemed to be registered under this Act. (?) The registration of a trade union, the conditions, procedures, and other arrangements relating thereto shall be as prescribed. ??.

Delegation of authority: (?) The Government of Nepal may delegate the powers vested in it under this Act by publishing a notice in the Nepal Gazette to be exercised by the official specified in that notice. (?) Any official

empowered under this Act may delegate the powers vested in him/her to the employees subordinate to him/her to be exercised under his/her general supervision. ??.

To be handed over: Every employee shall hand over the cash, goods, or documents that he/she is required to hand over to the concerned employee within the prescribed time limit, and the person who is to receive them shall also take them over within the same time limit. ??.

Power to make rules: The Government of Nepal may make necessary rules to implement the objectives of this Act. ??.

Repeal and saving: (?) Clause (j) of section 3 of the Civil Service Act, 2049 is deleted. (?) All actions and proceedings done in relation to employees of the Nepal Health Service under the Civil Service Act, 2049 and the rules made thereunder shall be deemed to have been done under this Act.